

UNITED STATES DISTRICT COURT

DISTRICT OF SOUTH DAKOTA

CENTRAL DIVISION

UNITED STATES OF AMERICA,

Plaintiff,

vs.

RICHARD ALAN KUCERA,

Defendant.

3:23-CR-30083-ECS

FINAL JURY INSTRUCTIONS

INSTRUCTION NO. 1

Members of the jury, the instructions I gave you at the beginning of the trial and during the trial remain in effect. I now give you some additional instructions. The instructions I am about to give you now are in writing and will be available to you in the jury room.

You must, of course, continue to follow the instructions I gave you earlier, as well as those I give you now. You must not single out some instructions and ignore others, because all are important.

All instructions, whenever given and whether in writing or not, must be followed.

INSTRUCTION NO. 2

It is your duty to find from the evidence what the facts are. You will then apply the law, as I give it to you, to those facts. You must follow my instructions on the law, even if you thought the law were different or should be different.

Do not allow sympathy or prejudice to influence you. The law demands of you a just verdict, unaffected by anything except the evidence, your common sense, and the law as I give it to you.

INSTRUCTION NO. 3

I have mentioned the word “evidence.” The “evidence” in this case consists of the testimony of witnesses, the documents and other things received as exhibits, and the facts that have been stipulated—that is, formally agreed to by the parties.

You may use reason and common sense to draw deductions or conclusions from facts which have been established by the evidence in the case.

Certain things are not evidence. I shall list those things again for you now:

1. Statements, arguments, questions, and comments by lawyers representing the parties in the case are not evidence.
2. Objections are not evidence. Lawyers have a right to object when they believe something is improper. You should not be influenced by the objection. If I sustained an objection to a question, then you must ignore the question and must not try to guess what the answer might have been.
3. Testimony that I struck from the record, or told you to disregard, is not evidence and must not be considered.
4. Anything you saw or heard about this case outside the courtroom is not evidence.

When you were instructed that evidence was received for a limited purpose, you must follow that instruction.

Some of you may have heard the terms “direct evidence” and “circumstantial evidence.” You are instructed that you should not be concerned with those terms. The law does not distinguish between direct and circumstantial evidence. You should give all evidence the weight and value you believe it is entitled to receive.

INSTRUCTION NO. 4

In deciding what the facts are, you may have to decide what testimony you believe and what testimony you do not believe. You may believe all of what a witness said, or only part of it, or none of it.

In deciding what testimony of any witness to believe, consider the witness's intelligence, the opportunity the witness had to have seen or heard the things testified about, the witness's memory, any motives that witness may have for testifying a certain way, the manner of the witness while testifying, whether that witness said something different at an earlier time, the general reasonableness of the testimony, and the extent to which the testimony is consistent with any evidence that you believe.

In deciding whether or not to believe a witness, keep in mind that people sometimes hear or see things differently and sometimes forget things. You need to consider therefore whether a contradiction is an innocent misrecollection or lapse of memory or an intentional falsehood, and that may depend on whether it has to do with an important fact or only a small detail.

INSTRUCTION NO. 5

The Superseding Indictment in this case charges the defendant, Richard Alan Kucera, with three counts of sex trafficking of a child and three counts of production of child pornography. The defendant has pleaded not guilty to these charges.

The Superseding Indictment is simply the document that formally charges the defendant with the crimes for which he is on trial. The Superseding Indictment is not evidence of anything. At the beginning of the trial, I instructed you that you must presume the defendant to be innocent. Thus, the defendant began the trial with a clean slate, with no evidence against him. The presumption of innocence alone is sufficient to find the defendant not guilty. This presumption can be overcome only if the United States proved during the trial, beyond a reasonable doubt, each element of the crimes charged.

Please remember that only the defendant, not anyone else, is on trial here, and that the defendant is on trial only for the crimes charged, not for anything else. Keep in mind that each count charges a separate crime. You must consider each count separately and return a separate verdict for each count.

There is no burden upon the defendant to prove that he is innocent. Instead, the burden of proof remains on the United States throughout the trial. Accordingly, the fact that the defendant did not testify must not be considered by you in any way, or even discussed, in arriving at your verdict.

INSTRUCTION NO. 6

The crime of sex trafficking of a child, as charged in Count 1 of the Superseding Indictment, has three elements, which are:

***One*, that on or about between July 1, 2020, and July 1, 2021, in the District of South Dakota and elsewhere, the defendant, Richard Alan Kucera, knowingly and intentionally recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited by any means (name redacted);**

***Two*, the defendant knew or recklessly disregarded the fact (name redacted) was under 18 years of age and would be caused to engage in a commercial sex act; however, the United States is not required to prove that the defendant knew, or recklessly disregarded the fact, that (name redacted) was under 18 years of age if the defendant had a reasonable opportunity to observe (name redacted); and**

The term “recklessly disregards” is defined in Instruction No. 7.

The term “commercial sex act” means any sex act, on account of which anything of value is given to or received by any person.

***Three*, the offense was in or affected interstate commerce or foreign commerce.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 7

A person “recklessly disregards” a fact within the meaning of sex trafficking when he is aware of, but consciously, deliberately, or carelessly ignores facts and circumstances that would reveal that a person under the age of 18 years old would be caused to engage in a commercial sex act.

INSTRUCTION NO. 8

The phrase “interstate commerce” means commerce between any combination of states, territories, and possessions of the United States, including the District of Columbia.

The phrase “foreign commerce” means commerce between any state, territory, or possession of the United States, including the District of Columbia, and a foreign country.

The term “commerce” includes, among other things, travel, trade, transportation, and communication.

In determining whether the defendant’s conduct was “in or affecting interstate or foreign commerce,” you may consider whether the defendant used means or facilities of interstate commerce, such as telephones, the internet, or hotels that serviced interstate travelers, or whether the defendant’s conduct substantially affected interstate commerce by virtue of the fact that the defendant purchased items that had moved in interstate commerce.

With respect to Counts 3, 4, and 6, images transmitted or received over the Internet have moved in interstate or foreign commerce. It is for you to determine, however, if the material containing the visual depiction had been transmitted or received over the Internet or was produced using materials that had been transmitted or received over the Internet.

INSTRUCTION NO. 9

The crime of sex trafficking of a child, as charged in Count 2 of the Superseding Indictment, has three elements, which are:

***One*, that on or about between May 1, 2021, and July 31, 2021, in the District of South Dakota and elsewhere, the defendant, Richard Alan Kucera, knowingly and intentionally recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited by any means (name redacted);**

***Two*, the defendant knew or recklessly disregarded the fact (name redacted) was under 18 years of age and would be caused to engage in a commercial sex act; however, the United States is not required to prove that the defendant knew, or recklessly disregarded the fact, that (name redacted) was under 18 years of age if the defendant had a reasonable opportunity to observe (name redacted); and**

The term “recklessly disregards” is defined in Instruction No. 7.

The term “commercial sex act” means any sex act, on account of which anything of value is given to or received by any person.

***Three*, the offense was in or affected interstate commerce or foreign commerce.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 10

The crime of production of child pornography, as charged in Count 3 of the Superseding Indictment, has four elements, which are:

One, that on or about between November 1, 2020, and June 1, 2021, in the District of South Dakota and elsewhere, (name redacted) was under the age of 18 years old;

The United States is not required to prove that the defendant knew that (name redacted) was under the age of 18 years old.

Two, the defendant knowingly employed, used, persuaded, induced, enticed, and coerced (name redacted) to engage in sexually explicit conduct;

A person is “used” if they are photographed or videotaped.

The term “sexually explicit conduct” is defined in Instruction No. 11.

Three, the defendant acted with the purpose of producing visual depictions of such conduct; and

The term “visual depiction” is defined in Instruction No. 12.

Four,

- a. the defendant knew or had reason to know that such visual depiction would be transported in interstate commerce or foreign commerce; or**
- b. the visual depiction was produced using materials that had been mailed, shipped, or transported in interstate commerce or foreign commerce by any means, including by computer or cellular phone.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 11

The term “sexually explicit conduct” means actual or simulated sexual intercourse, including genital-genital, oral-genital, anal-genital, oral-anal, whether between persons of the same or opposite sex; masturbation; or lascivious exhibition of the genitals or pubic area of any person.

Whether a visual depiction of the genitals or pubic area constitutes a “lascivious exhibition” requires a consideration of the overall content of the material. You may consider such factors as: (1) whether the focal point of the picture is on the minor’s genitals or pubic area; (2) whether the setting of the picture is sexually suggestive, that is, in a place or pose generally associated with sexual activity; (3) whether the minor is depicted in an unnatural pose or in inappropriate attire, considering the age of the minor; (4) whether the minor is fully or partially clothed, or nude; (5) whether the picture suggests sexual coyness or a willingness to engage in sexual activity; (6) whether the picture is intended or designed to elicit a sexual response in the viewer; (7) whether the picture portrays the minor as a sexual object; and (8) the caption(s) on the picture(s).

It is for you to decide the weight or lack of weight to be given to any of these factors. A picture need not involve all of these factors to constitute a lascivious exhibition of the genitals or pubic area.

INSTRUCTION NO. 12

The term “visual depiction” includes any photograph, video, picture, or computer-generated image or picture, whether made or produced by electronic, mechanical, or other means. It includes data stored on computer disk or by electronic means which is capable of conversion into a visual image.

An item is “produced” if it is produced, directed, manufactured, issued, published, advertised, created, made, or is in any other way brought into being by the involvement of an individual participating in the recording of child pornography.

INSTRUCTION NO. 13

The crime of production of child pornography, as charged in Count 4 of the Superseding Indictment, has four elements, which are:

One, that on or about between May 1, 2021, and July 31, 2021, in the District of South Dakota and elsewhere, (name redacted) was under the age of 18 years old;

The United States is not required to prove that the defendant knew that (name redacted) was under the age of 18 years old.

Two, the defendant knowingly employed, used, persuaded, induced, enticed, and coerced (name redacted) to engage in sexually explicit conduct;

A person is “used” if they are photographed or videotaped.

The term “sexually explicit conduct” is defined in Instruction No. 11.

Three, the defendant acted with the purpose of producing visual depictions of such conduct; and

The term “visual depiction” is defined in Instruction No. 12.

Four,

- a. the defendant knew or had reason to know that such visual depiction would be transported in interstate commerce or foreign commerce; or**
- b. the visual depiction was produced using materials that had been mailed, shipped, or transported in interstate commerce or foreign commerce by any means, including by computer or cellular phone.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 14

The crime of sex trafficking of a child, as charged in Count 5 of the Superseding Indictment, has three elements, which are:

***One*, that on or about between April 3, 2019, and April 2, 2020, in the District of South Dakota and elsewhere, the defendant, Richard Alan Kucera, knowingly and intentionally recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited by any means (name redacted);**

***Two*, the defendant knew or recklessly disregarded the fact (name redacted) was under 18 years of age and would be caused to engage in a commercial sex act; however, the United States is not required to prove that the defendant knew, or recklessly disregarded the fact, that (name redacted) was under 18 years of age if the defendant had a reasonable opportunity to observe (name redacted); and**

The term “recklessly disregards” is defined in Instruction No. 7.

The term “commercial sex act” means any sex act, on account of which anything of value is given to or received by any person.

***Three*, the offense was in or affected interstate commerce or foreign commerce.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 15

The crime of production of child pornography, as charged in Count 6 of the Superseding Indictment, has four elements, which are:

One, that on or about between June 14, 2020, and June 19, 2020, in the District of South Dakota and elsewhere, (name redacted) was under the age of 18 years old;

The United States is not required to prove that the defendant knew that (name redacted) was under the age of 18 years old.

Two, the defendant knowingly employed, used, persuaded, induced, enticed, and coerced (name redacted) to engage in sexually explicit conduct;

A person is “used” if they are photographed or videotaped.

The term “sexually explicit conduct” is defined in Instruction No. 11.

Three, the defendant acted with the purpose of producing visual depictions of such conduct; and

The term “visual depiction” is defined in Instruction No. 12.

Four,

- a. the defendant knew or had reason to know that such visual depiction would be transported in interstate commerce or foreign commerce; or**
- b. the visual depiction was produced using materials that had been mailed, shipped, or transported in interstate commerce or foreign commerce by any means, including by computer or cellular phone.**

The terms “interstate commerce,” “foreign commerce,” and “commerce” are defined in Instruction No. 8.

If all of these elements have been proved beyond a reasonable doubt, then you must find the defendant guilty of the crime charged; otherwise, you must find the defendant not guilty of this crime.

INSTRUCTION NO. 16

A person may also be found guilty of sex trafficking of a child, as charged in Counts 1, 2, and 5, even if he personally did not do every act constituting the offense charged, if he aided and abetted the commission of sex trafficking of a child.

In order to have aided and abetted the commission of a crime a person must, before or at the time the crime was committed:

- (1) Have known sex trafficking of a child was being committed or going to be committed;
- (2) Have had enough advance knowledge of the extent and character of sex trafficking of a child that he was able to make the relevant choice to walk away from sex trafficking of a child before all of the elements of sex trafficking of a child were complete;
- (3) Have knowingly acted in some way for the purpose of causing, encouraging, or aiding the commission of sex trafficking of a child; and
- (4) Have acted with the knowledge or intent required for the commission of the offense.

For you to find the defendant guilty of sex trafficking of a child by reason of aiding and abetting, the United States must prove beyond a reasonable doubt that all of the elements of sex trafficking of a child were committed by some person or persons and that the defendant aided and abetted the commission of that crime.

You may infer the defendant had the requisite advance knowledge of the sex trafficking of a child if you find the defendant failed to object or withdraw from actively participating in the commission of sex trafficking of a child after the defendant observed another participant complete sex trafficking of a child.

You should understand that merely being present at the scene of an event, acting in the same way as others, or associating with others does not prove that a person has become an aider and abettor. A person who has no knowledge that a crime is being committed or about to be committed, but who happens to act in a way which advances some offense, does not thereby become an aider and abettor.

INSTRUCTION NO. 17

The crimes charged in Count 3, Count 4, and Count 6 of the Superseding Indictment include an attempt to engage in a production of child pornography. A person may be found guilty of an attempt if he intended to produce child pornography and voluntarily and intentionally carried out some act which was a substantial step toward the production of child pornography.

A substantial step must be something more than mere preparation, yet may be less than the last act necessary before the actual commission of the substantive crime. In order for behavior to be punishable as an attempt, it need not be incompatible with innocence, yet it must be necessary to the consummation of the crime and be of such a nature that a reasonable observer, viewing it in context could conclude beyond a reasonable doubt that it was undertaken in accordance with a design to violate the statute.

INSTRUCTION NO. 18

Intent or knowledge may be proved like anything else. You may consider any statements made and acts done by the defendant, and all the facts and circumstances in evidence which may aid in the determination of the defendant's intent.

You may, but are not required to, infer that a person intends the natural and probable consequences of acts knowingly done or knowingly omitted.

An act is done knowingly if the defendant is aware of the act and does not act through ignorance, mistake, or accident. The United States is not required to prove that the defendant knew that his actions were unlawful. You may consider evidence of the defendant's words, acts, or omissions, along with all the other evidence, in deciding whether the defendant acted knowingly.

INSTRUCTION NO. 19

You have heard testimony from Ivy Rose Heron, who stated that she participated in the crime charged against the defendant. Her testimony was received in evidence and may be considered by you. You may give her testimony such weight as you think it deserves. Whether or not her testimony may have been influenced by her desire to please the prosecution or to strike a good bargain with the prosecution about her own situation is for you to determine.

INSTRUCTION NO. 20

You have heard evidence that Ivy Rose Heron hopes to receive a reduced sentence on criminal charges pending against her in return for her cooperation with the prosecution in this case. Ivy Rose Heron entered into an agreement with prosecution which provides that in return for her assistance, the prosecution will dismiss certain charges. If the prosecutor handling this witness's case believes she provided substantial assistance, that prosecutor can file in the court in which the charges are pending against this witness a motion to reduce her sentence. The judge has no power to reduce a sentence for substantial assistance unless the prosecution, acting through the United States Attorney, files a such a motion. If such a motion for reduction of sentence for substantial assistance is filed by the prosecution, then it is up to the judge to decide whether to reduce the sentence at all, and if so, how much to reduce it.

You may give the testimony of this witness such weight as you think it deserves. Whether or not testimony of a witness may have been influenced by her hope of receiving a reduced sentence is for you to decide.

INSTRUCTION NO. 21

You have heard testimony that the defendant engaged in a sexual relationship with (name redacted) while she was a sixteen- or seventeen-year-old, paid money to consenting adults in return for sexual acts, viewed or possessed child pornography, and possessed marijuana. The defendant is not on trial for any of this conduct. You may consider this evidence only if you unanimously find it is more likely true than not true that the defendant committed the act. This is a lower standard than proof beyond a reasonable doubt. You decide that by considering all of the evidence relating to the alleged act, then deciding what evidence is more believable.

If you find that this evidence has not been proved, you must disregard it. If you find this evidence has been proved, then you may consider it only for the limited purpose of deciding whether the defendant had a motive or opportunity to commit the acts described in the Superseding Indictment. You should give it the weight and value you believe it is entitled to receive.

The defendant is on trial only for the crimes charged. You may not convict a person simply because you believe he may have committed some acts, even bad acts, in the past.

INSTRUCTION NO. 22

Expert testimony should be considered just like any other testimony. You may accept or reject it, and give it as much weight as you think it deserves, considering the witness's education and experience, the soundness of the reasons given for the opinion, the acceptability of the methods used, and all the other evidence in the case.

INSTRUCTION NO. 23

The Superseding Indictment charges that the offenses were committed “on or about” a certain date. Although it is necessary for the United States to prove beyond a reasonable doubt that the offenses were committed on a date reasonably near the date alleged in the Superseding Indictment, it is not necessary for the United States to prove that the offenses were committed precisely on the date charged.

INSTRUCTION NO. 24

You have heard testimony that the defendant made a statement to the Federal Bureau of Investigation. It is for you to decide:

First, whether the defendant made the statement; and

Second, if so, how much weight you should give to it.

In making these two decisions you should consider all of the evidence, including the circumstances under which the statement may have been made.

INSTRUCTION NO. 25

Reasonable doubt is doubt based on reason and common sense, and not doubt based on speculation. A reasonable doubt may arise from careful and impartial consideration of all the evidence, or from a lack of evidence. Proof beyond a reasonable doubt is proof of such a convincing character that a reasonable person, after careful consideration, would not hesitate to rely and act on that proof in life's most important decisions. Proof beyond a reasonable doubt is proof that leaves you firmly convinced of the defendant's guilt. Proof beyond a reasonable doubt does not mean proof beyond all possible doubt.

INSTRUCTION NO. 26

In conducting your deliberations and returning your verdict, there are certain rules you must follow. I shall list those rules for you now:

First, when you go to the jury room, you must select one of your members as your foreperson. That person will preside over your discussions and speak for you here in court.

Second, it is your duty, as jurors, to discuss this case with one another in the jury room. You should try to reach agreement if you can do so without violence to individual judgment, because a verdict—whether guilty or not guilty, and on each count of the Superseding Indictment—must be unanimous. Each of you must make your own conscientious decision, but only after you have considered all the evidence, discussed it fully with your fellow jurors, and listened to the views of your fellow jurors. Do not be afraid to change your opinions if the discussion persuades you that you should. But do not come to a decision simply because other jurors think it is right, or simply to reach a verdict.

Third, if the defendant is found guilty, the sentence to be imposed is my responsibility. You may not consider punishment in any way in deciding whether the United States has proved its case beyond a reasonable doubt.

Fourth, if you need to communicate with me during your deliberations, you may send a note to me through the marshal or court security officer, signed by one or more jurors. I will respond as soon as possible either in writing or orally in open court. Remember that you should not tell anyone—including me—how your votes stand numerically.

Fifth, during your deliberations, you must not communicate with or provide any information to anyone other than by note to me by any means about this case. You may not use any electronic device or media, such as a smartphone or computer; the internet, any internet service, or any text or instant messaging service; or any internet chat room, blog, or website such as Facebook, Snapchat, LinkedIn, Instagram, YouTube, X (formerly known as Twitter), or Truth Social, to communicate to anyone information about this case or to conduct any research about this case until I accept your verdict.

Sixth, your verdict must be based solely on the evidence and on the law which I have given to you in my instructions. Nothing I have said or done is intended to suggest what your verdict should be—that is entirely for you to decide.

Finally, the verdict form is simply the written notice of the decision that you reach in this case. You will take this form to the jury room, and when each of you has agreed on the verdict, your foreperson will fill in the form, sign and date it, and advise the marshal or court security officer that you are ready to return to the courtroom.

UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH DAKOTA
CENTRAL DIVISION

UNITED STATES OF AMERICA, Plaintiff, vs. RICHARD ALAN KUCERA, Defendant.	3:23-CR-30083-ECS VERDICT
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We, the jury, duly empaneled and sworn to try the issues in this case, find as follows:

Count 1

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of sex trafficking of a child as charged in Count 1 of the Superseding Indictment.

Count 2

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of sex trafficking of a child as charged in Count 2 of the Superseding Indictment.

Count 3

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of production of child pornography as charged in Count 3 of the Superseding Indictment.

Count 4

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of production of child pornography as charged in Count 4 of the Superseding Indictment.

Count 5

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of sex trafficking of a child as charged in Count 5 of the Superseding Indictment.

Count 6

We find the defendant, Richard Alan Kucera, _____ (fill in either “not guilty” or “guilty”) of production of child pornography as charged in Count 6 of the Superseding Indictment.

Dated July ____, 2025.

Foreperson